# SUPREME COURT OF THE UNITED STATES

No. 24–351

UNITED STATES POSTAL SERVICE, ET AL.,
PETITIONER *v.* LEBENE KONAN

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

[February 24, 2026]

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN, JUSTICE GORSUCH, and JUSTICE JACKSON join, dissenting.

For two years, respondent Lebene Konan and her tenants did not receive mail addressed to the rental properties that Konan owned. According to Konan, negligence was not to blame. Quite the opposite: She alleges that United States Postal Service employees intentionally withheld delivery because they did not like "'that a black person own[ed]'" the properties and "'lease[d] rooms . . . to white people.'" 652 F. Supp. 3d 721, 725 (ND Tex. 2023).

Konan brought this action under the Federal Tort Claims Act (FTCA) against the United States to recover damages she sustained as a result of this alleged years-long harassment campaign. The United States is generally protected by sovereign immunity, but Congress, through the FTCA, has enacted a capacious waiver of that immunity for tort suits when an individual is harmed by a federal employee acting within the scope of her employment. That waiver, however, is subject to several exceptions. Today, the Court holds that one exception—the postal exception—prevents individuals from recovering for injuries based on a postal employee's intentional misconduct, including when an employee maliciously withholds their mail. Because this reading of the postal exception transforms, rather than honors, the exception Congress enacted, I respectfully dissent.

## I

The FTCA serves a simple purpose: "'to remove the sovereign immunity of the United States from suits in tort.'" *Levin* v. *United States*, 568 U. S. 503, 506 (2013). This "broad waiver" of immunity, *Millbrook* v. *United States*, 569 U. S. 50, 52 (2013), allows an individual harmed by a federal employee "acting within the scope of his office or employment" to recover for "injury or loss of property, or personal injury or death caused by the" employee's "negligent or wrongful act or omission," 28 U. S. C. §1346(b)(1); see *United States* v. *Yellow Cab Co.*, 340 U. S. 543, 547 (1951) (describing the waiver as "sweeping").

Congress has also enacted several exceptions preserving the United States' immunity in some circumstances. See §2680 (listing 13 such exceptions). The exceptions "are designed to protect certain important governmental functions and prerogatives from disruption." *Molzof* v. *United States*, 502 U. S. 301, 311 (1992). They thus "mark the 'boundary between Congress' willingness to impose tort liability upon the United States and its desire to protect certain governmental activities from exposure to suit by private individuals.'" *Ibid.*

At the same time, courts must be careful not to interpret these exceptions too broadly. "'[U]nduly generous interpretations,'" this Court has warned, "'run the risk of defeating the central purpose of the statute'"—to "'waiv[e] the Government's immunity from suit in sweeping language.'" *Dolan* v. *Postal Service*, 546 U. S. 481, 492 (2006) (quoting *Kosak* v. *United States*, 465 U. S. 848, 853, n. 9 (1984); *Yellow Cab*, 340 U. S., at 547). To harmonize these considerations, "'the proper objective of a court attempting to construe one of the'" exceptions "'is to identify those circumstances which are within the words and reason of the exception—no less and no more.'" *Dolan*, 546 U. S., at 492 (quoting *Kosak*, 465 U. S., at 853–854, n. 9 (some internal quotation marks omitted)).

This case calls on the Court to interpret the postal exception, which covers "[a]ny claim arising out of the loss, miscarriage, or negligent transmission of letters or postal matter." §2680(b). The wording of this exception is noticeably narrower than some of its neighbors. For example, all claims for "damages caused by the fiscal operations of the Treasury or by the regulation of the monetary system" are barred. §2680(i). So too are all "claim[s] arising from the activities of the Tennessee Valley Authority," the "Panama Canal Company," and "a Federal Bank, a Federal intermediate credit bank, or a bank for cooperatives," §§2680(*l*), (m), (n).

By comparison, Congress did not paint with as broad of a brush in designing the postal exception. Like it had for these other agencies and activities, Congress could have granted immunity for all "claims arising from the mail activities of the Postal Service." Instead, Congress identified certain "misconduct for which the Government was not assuming financial responsibility—namely, 'the loss, miscarriage, or negligent transmission of letters or postal matter.'" *Kosak*, 465 U. S., at 855. By using "specificity" over "generality," it follows that Congress intended for this exception "to be *less* encompassing" than the coverage provided by the broader exceptions, and for the Government to "assum[e] financial responsibility" for certain classes of "misconduct" related to postal activities. *Ibid*.

This Court has already identified some of those classes. In *Kosak*, the Court explained that claims arising from car accidents caused by postal employees delivering mail fall outside the exception. *Ibid*. In *Dolan*, the Court recognized a second class of claims for slip and falls caused by an employee negligently placing a package on a porch step. 546 U. S., at 483. Today, I would have affirmed the Fifth Circuit's well-reasoned decision that acknowledged a third class: claims concerning intentional misconduct committed

by postal employees, which would necessarily include withholding a person's mail for malicious reasons.

## II

### A

The postal exception's text shows that Congress did not intend to immunize intentional misconduct. Recall that the exception covers the "loss," "miscarriage," and "negligent transmission" of mail. §2680(b). As *Kosak* observed, the terms describe three categories of "misconduct" that postal employees can commit without incurring liability for the United States. 465 U. S., at 855. The majority, however, contends that these terms focus on "harms" rather than Government wrongdoing, citing *Dolan*. *Ante,* at 2, 5, 10. To be sure, *Dolan* described these terms as "harm[s]," but in the same breath, it also emphasized that the three terms protect "only a subset of postal wrongdoing." 546 U. S., at 490.

A focus on misconduct is consistent with most other FTCA exceptions, which generally are triggered by certain types of Government conduct, rather than the type of harm the plaintiff experiences. For instance, some exceptions directly cover different "act[s] or omission[s]" of Government employees, §§2680(a) (discretionary acts), (e) (administering §§1–31 of Title 50). Another addresses intentional actions by employees, capturing, for example, assault, battery, false imprisonment, and other intentional torts like them. §2680(h). A different group immunizes the "activities" of a given Government instrumentality. §§2680(j), (*l*), (m), (n). Yet a different subset describes a specific type of Government action, such as the "assessment or collection of any tax or customs duty," §2680(c), the "imposition or establishment of a quarantine," §2680(f), and the "fiscal operations of the Treasury," §2680(i). The focus of each is on the Government conduct. The same is necessarily true of the postal exception.

The key question is thus as follows: What kind of misconduct falls within the "'words and reason'" of the postal exception? *Dolan*, 546 U. S., at 492 (quoting *Kosak*, 465 U. S., at 854, n. 9). All signs point to Congress leaving intentional misconduct outside of the exception's scope.

1

Begin with "negligent transmission." This term covers "negligence causing mail to be lost or to arrive late, in damaged condition, or at the wrong address." *Dolan*, 546 U. S., at 486. It goes without saying that this term therefore does not immunize intentional misconduct.

Beyond that basic insight, however, Congress's express inclusion of "negligent transmission" provides other important clues for deciphering statutory meaning about the scope of the postal exception. As the majority recognizes, if Congress had included all claims arising out of the "transmission" of mail in the postal exception, the term "would have encompassed claims that involved mail even though nothing went wrong with its transport or delivery." *Ante,* at 12. To avoid that outcome, Congress needed to add a narrowing modifier to focus on when things go wrong.[1]

Critically, Congress did not have to choose "negligent" as that modifier (or the only modifier). Congress could have, for example, modified "transmission" with both "negligent" and "wrongful." Doing so would have avoided the problem the majority identifies while also clarifying that both classes of conduct fall within the exception's scope. Yet Congress elected to immunize negligent conduct alone. Its choice to do so carries significance. It raises the natural inference that Congress intended for at least some intentional wrongdoing related to transmitting mail to fall outside the scope of the exception.

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[1] Congress did not need to add "negligent" before "miscarriage" or "loss" because the ordinary meaning of those terms, plus statutory context, convey inadvertence on their own. See *infra*, at 6–12.

Indeed, before this Court, the Government emphasizes repeatedly that "negligent transmission" is "significant" because the term "shows that Congress knew how to exclude intentional conduct when it wanted to." Brief for Petitioners 3, 17, 35. Yet, according to the Government and the majority, this was a hollow choice. In their view, Congress excluded some set of intentional conduct through the "negligent transmission" modifier only to sweep that conduct back into the exception through "miscarriage" and "loss." The majority adopts the Government's definition of "miscarriage" as capturing situations where "mail fail[s] to arrive properly," regardless of the actor's intent. *Ante,* at 6. It also adopts the Government's definition of "loss" as capturing the "deprivation of mail," regardless, again, of the depriver's intent. *Ante,* at 8. It is difficult to see how a postal employee could intentionally transmit mail wrongfully—such as by refusing to deliver the mail, lighting it on fire, or shredding it into pieces—without falling within these definitions of "miscarriage" or "loss." In this world, Congress did not even need to bother with the modifier to transmission that it adopted.

Congress did not make this odd choice. As explained below, "loss" and "miscarriage," as used in the postal exception, do not capture intentional misconduct either.

2

Turn, then, to "loss." As the Government acknowledged in its petition for certiorari, "loss" is ordinarily understood to capture unintentional conduct. Pet. for Cert. 14; see also Webster's New International Dictionary 1460 (2d ed. 1934) (defining "loss" as an "[a]ct or fact of losing . . . esp[ecially], unintentional parting with something of value"). For good reason: As the Fifth Circuit observed below, "no one intentionally loses something." 96 F. 4th 799, 802 (2024). People lose their keys when they misplace them, not when they give them to their children. People lose their mail when it

gets stuck behind a drawer, not when they intentionally throw it away. If someone said that they "lost" their car, no one would think it was stolen, only that the person forgot where they had parked it. The same is true when the Postal Service loses someone's mail. The reason is an error, not deliberate wrongdoing.

To reach its contrary result, the majority defines "loss" as any "deprivation of mail," which it concludes captures all situations where the individual does not receive mail, no matter the cause. *Ante,* at 8. To do so, however, the majority must shift away from a focus on harms that befall the mail to harms that befall Konan. The majority says that the postal exception encompasses three "kinds of harms, not kinds of actions by the postal workers." *Ante,* at 10. The majority defines the first two terms, "miscarriage" and "negligent transmission," to encompass "harms" to the mail. Yet, under the majority's interpretation, "loss" is an entirely distinct kind of "harm." That is because the mail does not "suffer a deprivation" in the same way that mail fails to arrive (miscarriage) or mail is damaged due to negligence (negligent transmission). The only way "loss" could mean a "deprivation" is if it were a harm experienced by Konan, not by the mail. No such inconsistency, however, arises if (as explained above) all three terms are read to refer to the Government's misconduct: the Postal Service's loss, miscarriage, or negligent transmission of mail. See *supra*, at 4–5. When used in this sense, "loss" plainly and sensibly denotes unintentional conduct, consistent with its ordinary meaning.[2]

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[2] The Government also contends that "loss" in the postal exception incorporates intentional misconduct because it asks "whether the alleged victims 'lost' mail." Brief for Petitioners 41 (emphasis deleted); Tr. of Oral Arg. 21 (same). That again requires the same shift in perspective: asking, on one hand, whether mail was "miscarr[ied]" or "negligently transmitted" by the Postal Service, and, on the other hand, whether Konan "los[t]" (and so was deprived of) her mail.

The majority also invokes the presumption of consistent usage. It points to the use of "loss" in the FTCA's sovereign immunity waiver as meaning "deprivation," and argues that "loss" as used in the postal exception must take on the same meaning. *Ante,* at 10. The consistent-usage canon, however, "'readily yields' to context," *Utility Air Regulatory Group* v. *EPA*, 573 U. S. 302, 320 (2014), and here, comparing the context of the FTCA's waiver to the context of the postal exception shows that "loss" is being used in two different ways.

The waiver uses "loss" to describe the form of damages an individual harmed by a federal employee can seek to recover. It states that plaintiffs can bring claims against the United States for "loss of property" "caused by the negligent or wrongful act or omission of any employee of the Government" while acting within the scope of their employment. §1346(b)(1). The plaintiff's "loss" could be due to "negligent or wrongful" conduct, as the waiver states explicitly. *Ibid.* In contrast, the postal exception uses "loss" to describe the form of the employee's misconduct that is protected from liability. If an employee lost the mail, the plaintiff suffered a "loss" under the waiver and the claim arose "out of the loss" of the mail, meaning the postal exception applies. If an employee intentionally destroyed the mail, the waiver would still be implicated because the plaintiff suffered a relevant "loss" for purposes of the waiver. The postal exception would not apply, however, because the employee destroyed the mail and did not lose it. "Loss" is thus being clearly used in two different ways and carries two different meanings.

3

That brings us to "miscarriage." The majority is correct that "miscarriage" covers misconduct by the Postal Service that causes mail to "fai[l] to arrive properly," *ante,* at 6, but

the majority is wrong to extend this meaning to cover situations that involve intentional misconduct.

As the majority recognizes, "miscarriage" commonly covers negligence or inadvertence. *Ante,* at 7. Indeed, there are many examples of "miscarriage" being used when mail "fails to arrive" due to negligence, including as illustrated by the Government's own cases. See, *e.g.*, *Heinrich* v. *First Nat. Bank*, 219 N. Y. 1, 113 N. E. 531, 531–532 (1916); *Elam* v. *St. Louis & S. F. R. Co.*, 117 Mo. App. 453, 93 S. W. 851 (1906); see n. 3, *infra.* From here, as the majority sees it, mail that is intentionally not delivered, even for malicious reasons, also "failed to arrive properly," so Congress must have intended to include intentional misconduct within the exception by using "miscarriage." *Ante,* at 6. The majority, however, offers no persuasive evidence suggesting that "miscarriage" is commonly used in this way.

To start, the majority relies on several dictionary definitions. *Ante,* at 6–7. None of those definitions addresses an individual's *mens rea.* The phrase "failure to arrive," moreover, does not immediately suggest intentional wrongdoing. "A diplomat might 'fail to arrive' at a treaty negotiation if her flight were cancelled, but no one would describe her as 'failing to arrive' if she deliberately skipped the talks to undermine the treaty ('refused to attend' would be more accurate)." Brief for Respondent 23.

Next, the majority turns to real-life examples. Here, the majority does not rely on any cases cited by the Government. That is not a surprise, as the Government failed to identify a single example of "miscarriage" being used to describe mail "failing to arrive properly" due to intentional misconduct.[3] The majority thus searches elsewhere, citing

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[3] See Reply Brief 8–10 (citing *Bowen* v. *Wilson*, 15 F. 2d 733, 734 (DC 1926) ("miscarriage" when delivery was attempted but returned because the recipient could not be found); *Heinrich* v. *First Nat. Bank*, 219 N. Y. 1, 113 N. E. 531, 531–532 (1916) (mail was "miscarried" when it was misplaced behind a radiator due to "the negligence of employees of the post-

examples of its own: two cherry-picked newspaper references almost 20 years apart, and at least 30 years before the enactment of the FTCA, that used "miscarried," not "miscarriage." *Ante,* at 7–8. If "miscarriage" were in fact ordinarily used to describe intentional misconduct, one might expect that actual examples of the usage would be easier to come by.

The majority also cites cases in which the reason behind a "miscarriage" was not identified, but those cases do not support its position. *Ante,* at 7–8. How a word is used when the cause is unknown hardly informs whether an ordinary speaker would use the same word when the cause is known. Those cases, moreover, simply reflect the general presumption that issues with mail are typically not a result of intentional misconduct by postal workers. For example, in *Lake* v. *Lake*, 63 Wyo. 375, 182 P. 2d 824 (1947) (*per curiam*), the court explained that when a motion arrived in court "a day too late" due to a "miscarriage of the mails," with no further cause explained, that "'mere accident'" should not be held against the party. *Id.*, at 402, 182 P. 2d, at 835. Similarly, in *Wagner* v. *Lucas*, 79 Okla. 231, 193 P. 421 (1920), the court described "miscarriage of the mails" as a situation that "human prudence, foresight, and sagacity . . . could not

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office"); *Southern Express Co.* v. *Hill*, 81 Ark. 1, 98 S. W. 371, 372–373 (1906) ("miscarriage" due to the sender mistakenly writing the wrong address); *Elam* v. *St. Louis & S. F. R.* Co., 117 Mo. App. 453, 93 S. W. 851 (1906) ("miscarriage" due to the "negligence" of the postal carrier); *Western Home Ins. Co.* v. *Richardson*, 40 Neb. 1, 58 N. W. 597, 598 (1894) (cause unknown); *Fosters* v. *McKibben*, 14 Pa. 168, 170 (1850) (describing a letter that "miscarrie[s] for want of publication"); *People ex rel. Holdsworth* v. *Superior Ct.*, 18 Wend. 675, 678 (N. Y. Sup. Ct. 1837) (cause unknown)). See also *Missouri, K. & T. R. Co.* v. *Ellis*, 53 Okla. 264, 156 P. 226, 228 (1916) (although the cause of the mail arriving late was unknown, the court referred to the "miscarriage of the mail" as an "accident"); *Kellogg* v. *Smith*, 171 Okla. 355, 42 P. 2d 493, 495 (1935) (*per curiam*) (similar); *Hogan* v. *Bailey*, 27 Okla. 15, 110 P. 890, 891 (1910) (similar); *Chichester* v. *Cande*, 3 Cow. 39, 48 (N. Y. Sup. Ct. 1824) (similar).

prevent," like a "mistake in the wording of a telegram." *Id.*, at 232–233, 193 P., at 423. Accordingly, the use of the term "miscarriage" in these cases does not prove that the term covers intentional misconduct; in context, had the courts suspected that the late delivery, for instance, was a result of such misconduct, they likely would have used a different word.

The contemporaneous Postal Laws and Regulations from before the FTCA was enacted—the "backdrop" against which "Congress enacted the postal exception," Brief for Petitioners 35—further undermine the majority's interpretation. For example, those regulations directed the Division of Stamps to make adjustments in "cases of loss, miscarriage, or detention of stamped supplies in transit." Post Office Dept., Postal Law & Regs. §13.6 (1940 ed.). This suggests that when the stamped supplies were intentionally held back and not delivered (*i.e.*, failed to arrive), "detention" was used instead of "miscarriage," even though, on the majority's reading, "miscarriage" would have sufficed. The regulations also directed postal employees to "hold" packages dropped off for "forwarding" if they contained "destructive mail matter," to "notify the sender" of the "detention of the package," and to let them know it cannot be "transported by mail." §728. This is another use of "detention" in the context where, under the majority's view, "miscarriage" would have been appropriate because the mail "failed to arrive" at its destination. Yet, in each, the cause of the nondelivery was known, it was not inadvertence, and a different term was used.

At most, the majority shows that certain dictionary definitions of "miscarriage" could conceivably capture intentionally withholding mail, or tearing up a letter into pieces, or lighting a package on fire—in all those situations, the mail "failed to arrive properly." *Ante,* at 6. "That a definition is broad enough to encompass one sense of a word," however, "does not establish that the word is *ordinarily*

understood in that sense." *Taniguchi* v. *Kan Pacific Saipan, Ltd.*, 566 U. S. 560, 568 (2012). Here, neither the majority nor the Government has offered any meaningful evidence supporting the view that "miscarriage" was commonly used in situations when the mail failed to arrive properly due to intentional wrongdoing, and that, by including "miscarriage" within the postal exception, Congress intended to capture such wrongdoing.

If there were any doubt, the words surrounding "miscarriage" resolve it. As the Court in *Dolan* explained, when construed in context, "[a] word in a statute may or may not extend to the outer limits of its definitional possibilities." 546 U. S., at 486. For example, "'[a] word is known by the company it keeps,'" and "'[w]ords grouped in a list should be given related meaning.'" *Id.*, at 486–487. Without this rule, courts risk "'ascribing to one word a meaning so broad that it is inconsistent with its accompanying words, thus giving unintended breadth to the Acts of Congress.'" *Yates* v. *United States*, 574 U. S. 528, 543 (2015) (plurality opinion).

Here, reading "miscarriage" to capture intentional misconduct does precisely that. As noted above, the word "loss" typically connotes negligence, see *supra*, at 6–7, and the majority's reading makes Congress's specific inclusion of the "negligent" modifier for "transmission" entirely ineffective at serving its purpose—excluding intentional misconduct. See *supra*, at 5–6. There also does not appear to be any good reason why Congress would have wanted one term ("miscarriage," alone) to cover intentional misconduct and not the other two terms. Indeed, under the majority's broad definition of "miscarriage," the words "loss" and "negligent transmission" become no more than "misleading surplusage." *Yates*, 574 U. S., at 546.

B

For all these reasons, a faithful interpretation of the postal exception leads to the conclusion that intentional misconduct is excluded from its reach. Congress used "overlapping" terms in the exception, *ante,* at 13, but Congress intended for that overlap to keep claims alleging negligence, not intentional wrongdoing, out of court. This reading gives meaning to Congress's choice to put "negligent" before "transmission" and to use the words "miscarriage" and "loss" in their common understanding, and it respects the "specificity" Congress used in the postal exception as compared to the broadly worded exceptions Congress used for other agencies. *Kosak*, 465 U. S., at 855.

Undeterred by this evidence, the majority gives the Postal Service the blanket exception Congress withheld. In its view, the exception immunizes the agency for all intentional and nonintentional actions in the delivery of mail (apart from auto accidents and slip and falls, as *Dolan* and *Kosak* require). Relying on "loss, miscarriage, and negligent transmission" is an odd way to cover this waterfront. If Congress had intended this outcome, why not follow the same approach that it used for other broad exceptions in the FTCA? See *supra*, at 3. The answer is that Congress intended no such thing. By expanding the "words and reason" of the postal exception beyond their "specifi[c]" scope, *Kosak*, 565 U. S., at 855, the majority undermines the "'sweeping'" waiver of immunity Congress adopted, *Dolan*, 546 U. S., at 492.

Contrary to the majority's suggestion otherwise, adhering to the text Congress enacted would not flood the Government or courts with frivolous lawsuits.[4] That is because

[4]The majority points to the 335,000 complaints filed with the Postal Service each year to suggest that those claims arise out of mail failing to "arriv[e] properly and on time." *Ante,* at 2. This is misleading. As Konan explains, those complaints include "everything from '[r]ude or unprofessional . . . employee behavior' to '[c]omplaints about . . . vehicle parking.'"

the FTCA has additional safeguards that bar many claims premised on intentional misconduct. Liability for the United States will arise only in the rare situation in which the employee's intentional conduct is tortious, falls within the scope of her employment, and falls outside of the due-care and discretionary-function exceptions. See 28 U. S. C. §2680(a). For example, the majority cites one case of an insurance company suing after a federal employee stole an expensive package it had insured, see *ante*, at 6, but most States likely do not consider intentional torts like theft to fall within an individual's scope of employment, see Restatement (Second) of Agency §228 (1957) (torts fall outside the scope of employment when they are "too little actuated by a purpose to serve" the employer); Brief for Respondent 43, n. 21 (collecting cases where theft fell outside the scope of employment). The United States, accordingly, would not incur liability in those circumstances or others involving claims of similar misconduct.

In addition, there are ordinary litigation tools to prevent any threat of abuses, from Rule 11 of the Federal Rules of Civil Procedure to the plausibility standards in *Bell Atlantic Corp.* v. *Twombly*, 550 U. S. 544 (2007), and *Ashcroft* v. *Iqbal*, 556 U. S. 662 (2009). These tools suffice in many other circumstances where the threats of disruption posed by large volumes of litigation are also high. Other exceptions, like the intentional-tort exception, §2680(h), and the due-care exception, §2680(a), turn on Government officials' *mens rea*, and courts are well equipped to assess the plausibility of any given case based on the facts before them.

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Brief for Respondent 43. Submitting a "'customer complaint,'" moreover, requires "typing a few sentences into an online form," whereas "[f]iling an FTCA claim requires first exhausting administrative remedies and then filing suit in court." *Ibid.* The raw number of complaints therefore does not provide an accurate gauge of the consequences for recognizing that intentional misconduct does not fall within the postal exception.

Finally, even if ruling for Konan today would mean more suits against the Government for mail-related intentional torts tomorrow, that would not provide this Court with authority to change the text Congress enacted. Ultimately, this regime is the consequence of Congress's choice to have the exception turn on certain types of misconduct, rather than providing the Postal Service with a blanket exception. It is not the role of the Judiciary to supplant the choice Congress made because it would have chosen differently.

* * *

Today, the majority concludes that the postal exception captures, and therefore protects, the intentional nondelivery of mail, even when that nondelivery was driven by malicious reasons. Because this interpretation expands the scope of the exception beyond what it can reasonably support, and undermines the FTCA's sweeping waiver in the process, I respectfully dissent.